

WI.4 Where to File Directory

How to find out who inspects your parcel, which office issues what, and the separation distances that decide where the house can actually go.

Before you use this document

This is a process reference, not legal advice. Wisconsin writes one Uniform Dwelling Code that binds every new one- and two-family dwelling in the state, and then splits the *enforcement* of it three ways — a municipality that inspects with its own staff, a municipality that contracts the work out, and a town that has never taken it up, where the state's own certified agency does it instead. Your septic permit comes from the county no matter which of the three you are in. Confirm every item with the office that will actually handle your parcel before you rely on it. No phone numbers are printed anywhere in this kit — they go stale faster than anything else. Office names and web addresses are given instead.

HOW TO FIND OUT WHO INSPECTS YOUR PARCEL

This is the single most useful procedure in the Wisconsin kit, and almost nobody outside the trade knows the two documents it depends on. The department publishes both, free, and together they resolve any parcel in the state.

Start with the right jurisdiction. In rural Wisconsin your jurisdiction is almost always a **Town** — “Town of Grant, Portage County” — and it is *not* the city on your mailing address. Get the exact entity from the county land-records or parcel viewer, or from the legal description on the deed, before you look anything up.

The three-step lookup

	Document	What it tells you
1	UDC Delegated Municipalities List dsps.wi.gov → Programs → Delegated Agent → UDCDelegatedMuni.pdf	Search it for your exact municipality. If it is listed, that municipality issues your permit and does your inspections , and the list names the municipal contact and the inspector currently under contract
2	UDC Permit and Inspection Map dsps.wi.gov → Programs → Maps → UDCPermitInspectionMap.pdf	If your municipality is <i>not</i> on the list, find your county on this one-page color map. It tells you whether to contact the county, the department, or a named private inspection agency
3	Whoever that turns out to be, use them for everything	<i>“A person who obtains a Wisconsin uniform building permit from a registered UDC inspection agency shall retain the same agency to conduct the inspections for the project.” (s. SPS 320.08(2))</i>

The list carried 1,771 numbered rows when read for this edition (dated 19 August 2026) and states: “Contact the municipalities listed below for one- and two-family dwelling and camping unit construction and inspections. For projects within municipalities not listed below, contact the inspection agency responsible for your area.”

The map was revised 2 April 2026 and is headed “Who is my contact for permitting and inspection services?” Both are updated periodically — pull the current versions rather than relying on a number printed here.

Two things on those documents that mislead people

“Opt-Out” does not mean “no permits here.” The delegation column that shows Delegated or Opt-Out on the municipalities list refers to **camping units** under ch. SPS 327, not to the Uniform Dwelling Code. A county can show Opt-Out there and still hold full UDC delegation. Do not read it as an absence of building permits.

One county is split down the middle. On the inspection map, **Clark County** is divided — the northern part and the southern part fall to two different contracted agencies. If your parcel is in Clark County you have to know which half you are in before you call anyone.

Thirteen counties hold UDC delegation and issue permits for the cities, villages and towns within them that have no delegation of their own: **Adams, Bayfield, Buffalo, Chippewa, Eau Claire, Florence, Forest, Langlade, Marquette, Richland, Trempealeau, Waupaca and Waushara**. Everywhere else that is not a delegated municipality, the contact is the department or one of its contracted agencies.

And there is no gap. The department's own program page states that “*the UDC is enforced in all Wisconsin municipalities*”, and its owner brochure adds the sentence that matters most: “*Regardless of permit requirements, state statutes require compliance with the UDC rules by owners and builders even if there is no enforcement.*”

WHICH OFFICE ISSUES WHAT

The full permit stack for a rural Wisconsin build

Filing	Who issues it	Authority
Building permit (UDC), including erosion control	Your municipality, your county if it holds delegation, the department, or a contracted UDC inspection agency — use the lookup above	s. SPS 320.08(1)
Sanitary permit (POWTS / septic)	The county , statewide — except in a county of 750,000 or more people, where it is the city, village or town	Wis. Stat. s. 145.01(5)
Soil and site evaluation	A state-certified soil tester; the report is filed with the county	s. SPS 385.40(1)
Well notification , before drilling	Department of Natural Resources — the owner or the constructor may obtain the number	Wis. Stat. s. 281.34(3)(a)
Well construction report , after drilling	Filed by the driller with the department and with you, within 30 days, electronically	s. NR 812.10(11)

The full permit stack for a rural Wisconsin build

Filing	Who issues it	Authority
Zoning / land use permit	County zoning in unincorporated towns; otherwise the town, village or city	Wis. Stat. s. 59.69
Shoreland zoning	The county — every county must zone all shorelands in its unincorporated area	Wis. Stat. s. 59.692(1c)
Floodplain zoning	The county in unincorporated territory; the city or village inside one	s. NR 116.02
Driveway / access permit	Whichever authority maintains the road you are cutting into — the town board, the county highway department, or the Department of Transportation	Wis. Stat. s. 86.07(2)(a)
Construction site stormwater , one acre or more	Department of Natural Resources, by notice of intent	s. NR 216.42(1)

Why the county office has a different name in every county. The statute lets each county put the septic program wherever it likes: the governing body “*may assign the duties of administering the private on-site wastewater treatment system program to any office, department, committee, board, commission, position or employee*” (Wis. Stat. s. 145.20(1)(a)). So you will find it under Planning and Zoning, Land Conservation, Land and Water Conservation, Land Services, Land Information, Community Development, Environmental Health, Public Health, or a standalone Sanitarian. **Search your county's site for the words “sanitary permit”, not for a department name.**

Two things to ask the county before you spend money

1. Is there already a soil test on this parcel? “*The results of any percolation test or other test ... shall be retained by the governmental unit where the property is located. The governmental unit shall make the test results available to an applicant ... and shall accept the test results as the basis for a sanitary permit application unless the soil at the test site is altered.*” (Wis. Stat. s. 145.19(1r)) A previous owner may already have paid for your soil evaluation.

2. Does the county run a delegated well program? A county authorized under Wis. Stat. s. 59.70(6)(b) and ch. NR 845 “*may require that a permit be obtained*” before a private well is constructed. The state notification is not always the only step.

THE WELL — YOU MAY DRILL IT YOURSELF

This is the mirror image of the septic answer. Wisconsin does **not** require a license to drill a well on your own land: an individual constructing a well must be a licensed water well driller *“except that a license is not required for ... an individual performing well drilling on real estate owned or leased by that individual”* (s. NR 812.10(1)(a)). Every construction standard in ch. NR 812 still applies to the well you drill — the exemption is from the credential, not from the code.

But there **is** a filing before the rig arrives, and it is your job, not the driller's: *“An owner shall notify the department of the location of a well that is not a high capacity well **before construction of the well begins**”* (Wis. Stat. s. 281.34(3)(a)). The driller must then confirm it exists — they *“shall either obtain a well notification or verify that the well owner has obtained a department well notification including the notification number ... before the well construction operation is started”* (s. NR 812.10(8)). Afterwards the driller files a well construction report with the department and with you within 30 days (s. NR 812.10(11)). **Keep your copy.** It is the only permanent record of casing depth, static level, yield and geology, and buyers and lenders ask for it years later.

Look at the neighbors' wells before you buy the land

Because every well construction report since the system went electronic is public, you can search the wells around a parcel and see what depth, what geology and what yield the drillers actually found — before you make an offer. The public search is the Well Construction Information System at **apps.dnr.wi.gov**. On a rural parcel this is the cheapest due diligence available to you.

Minimum casing, by formation (ss. NR 812.13, 812.14)

Formation	Min. diameter	Minimum casing depth
Unconsolidated (sand and gravel)	2 inches	25 feet , or 10 feet below the static water level when that level is more than 15 feet down
Sandstone bedrock	6 inches	30 feet
Crystalline igneous or metamorphic bedrock	6 inches	40 feet
Limestone or dolomite, top 20 feet or more down	6 inches	40 feet
Limestone or dolomite, top less than 20 feet down	6 inches	60 feet

These are minimums; greater depth is required in special well casing depth areas under s. NR 812.12(3). The casing must terminate “at least 12 inches above the established ground surface” (s. NR 812.29(1)), and a well may not terminate in or extend through a basement or a crawl space (s. NR 812.08(2)(c)) — with a narrow exception for a qualifying walkout basement. Water samples for total coliform bacteria and nitrate must be collected after new well construction (s. NR 812.46(1)(b)); that is state law, not merely a lender's condition.

WELL SEPARATION DISTANCES — NR 812.08, TABLE A

This table decides where the well can go, and therefore — because the septic and the house have to clear it too — where everything else goes. Lay all three out together before you commit to a house position.

Read these four rules before you read the table

Measured to the source, and the property line is irrelevant. *“Separation distances shall be measured from the edge of the well, reservoir, or spring, to the nearest edge of the contaminant source or as specified in Table A. **Separation distance requirements to possible contaminant sources may not be waived because of a property line.**”* (s. NR 812.08(4)) A neighbor's drain field 30 feet away on the far side of your lot line still breaks the 50-foot rule.

Anything not listed gets 8 feet. A well shall be located *“such that any potential contaminant source, not identified in this section or in Table A, is a minimum of 8 feet from the well, reservoir, or spring”* (s. NR 812.08(1)(d)).

Put it high. The well shall be located *“so that the well, reservoir or spring is protected from surface water flow and flooding, and located at the highest point on the property consistent with the general layout and surroundings if reasonably possible”* (s. NR 812.08(1)(b)).

There is no well-to-house number. Table A has no foundation row. Buildings are handled by construction rules instead: no well in line with a downspout, none terminating in a basement or crawl space, and an access hatch if a structure is built over it (s. NR 812.08(2)).

Minimum separation distances between a well and possible contamination sources, in feet

Source, as the table names it	Feet
POWTS dispersal component (soil absorption unit or mound), under 12,000 gallons per day	50
POWTS treatment component — septic tanks, aerobic treatment units or filters	25
POWTS holding component — a wastewater holding tank	25
Sanitary building sewer	8
Sanitary collector sewer	25
Storm sewer	8
Drain — sanitary building	8
Shoreline — lake or pond, measured to the regional high-water elevation; river or stream, to the edge of the floodway	25
Ditch — edge of	8

Minimum separation distances between a well and possible contamination sources, in feet

Source, as the table names it	Feet
Culvert, stormwater	8
Stormwater detention basin, measured to the edge	25
Stormwater infiltration basin or system at a single- or two-family residence, including rain gardens and infiltration trenches	8
Swimming pool, above or below ground, measured from edge of water	8
Cistern	8
Nonpotable well	8
Pit or alcove — noncomplying	8
Heat exchange drillhole	10
Sump — wastewater, watertight	8
Sump — wastewater, not watertight	25
Privy — vault privy (watertight)	25
Privy — pit privy (not watertight)	50
Liquid propane gas tank , buried or surface, and associated buried gas lines serving a single-family residence	8
Fuel oil tank, 1,500 gallons or less on the surface, or any size buried, serving a single-family residence	25
Fuel oil tank over 1,500 gallons on the surface, or any size buried	100
Gasoline or other petroleum tank — surface, under 1,500 gallons, not including liquid propane tanks	25
Gasoline or other petroleum tank — buried	100
Grease interceptor (buried trap)	25
Pet animal shelter or kennel housing not more than 5 pets	8
Pet animal shelter or kennel housing more than 5 pets	50
Pet waste pit disposal unit	50
Animal barn or barn pen, measured to the nearest outside edge of the building or structure	50
Animal shelter; animal yard, including a calf hutch	50
Silo, not including dry grain storage structures	50

Minimum separation distances between a well and possible contamination sources, in feet

Source, as the table names it	Feet
Manure storage structure — fabricated, liquid-tight	100
Manure storage structure — earthen, excavated or non-liquid tight	250
Manure stack — temporary	150
Cemetery grave sites	50
Fertilizer or pesticide storage tank, any size, potable wells	100
Salvage yard or junkyard	250
Salt or deicing material storage area	250
Quarry	500
Landfill, active, proposed or closed	1,200
Coal storage over 500 tons	1,200

Wis. Admin. Code s. NR 812.08, Table A, "Minimum Separation Distance Requirements Between Potable or Nonpotable Wells, Reservoirs, Springs, and Possible Contamination Sources." Chapter as published, Register February 2026 No. 842; Table A last amended by CR 25-013, effective 1 March 2026. The rows above are the ones a house site meets; the full table also covers silage, sludge, wastewater plants, solid waste and hazardous waste facilities. Two footnotes matter on a house site: the POWTS dispersal distance "does not apply if the component has been abandoned in accordance with s. SPS 383.33", and the pond-shoreline distance does not apply to "synthetically lined decorative yard ponds located on residential lots."

The abandonment footnote can rescue a tight lot

If an old drain field sits where your 50 feet needs to be, footnote 2 to Table A says the separation distance *"does not apply if the component has been abandoned in accordance with s. SPS 383.33"*. Properly abandoning the old system removes its setback. On a small or awkward parcel that is sometimes the difference between a workable layout and no layout at all — raise it with the county before you conclude the lot cannot be built on.

POWTS SETBACKS — SPS 383.43, TABLE 383.43-1

The septic side has its own, much shorter table. Note that it does **not** carry a well distance — it defers to the well chapter, which is why the numbers above govern.

Horizontal setback parameters, in feet

Physical feature	Dispersal component, or treatment component of in situ soil	Exterior subsurface treatment or holding tank	Force mains, suction and pump discharge lines
Building	10	5	none
Property line	5	2	2
Swimming pool	15	none	none
Ordinary high-water mark of navigable waters	50	10	10
Water service and private water main	10	10	5
Well	chs. NR 811 & 812	chs. NR 811 & 812	chs. NR 811 & 812

Wis. Admin. Code s. SPS 383.43, Table 383.43-1, “Horizontal Setback Parameters”; chapter as published, Register August 2026 No. 848, table content effective 1 July 2013. Footnotes: the 5-foot tank distance excludes recreational-vehicle transfer tanks; “none” is subject to the accessibility rule in s. SPS 383.43(8)(f); and “road right-of-way lines may be more restrictive than property lines.” The trigger sentence reads: “POWTS treatment, holding and dispersal components shall be located so as to provide the minimum horizontal setback distances as outlined in Table 383.43-1 as safety factors for public health, waters of the state and structures in the event of component failure.” (s. SPS 383.43(8)(i))

The vertical number people get wrong

Wisconsin's required vertical separation is **24 inches**, not three feet: “The infiltrative surface of unsaturated soil to which influent is discharged shall be located at least 24 inches above the estimated highest groundwater elevation and bedrock.” (s. SPS 383.44(3)(a))

The 36-inch figure is genuinely Wisconsin's — it is just forty years out of date. The code says so itself in a note: “Since December 1, 1969 to July 1, 2000, the state plumbing code required 36 inches of soil between the infiltrative surface of a POWTS and high groundwater or bedrock.” Since 2000 it has been 24 inches. And note there is **no table in the code that maps soil depth to a system type** — no rule says “this depth means a mound”. The soil tester's application rate and the 24-inch separation decide the design, and the system type falls out of that.

IF THE PARCEL IS NEAR WATER

Shoreland zoning is county-run and mandatory: “each county shall zone by ordinance all shorelands in its unincorporated area” (Wis. Stat. s. 59.692(1c)). Shorelands reach **1,000 feet from a lake, pond or flowage** and **300 feet from a river or stream, or to the landward side of the floodplain, whichever is greater** (s. 59.692(1)(b)). And “structure” is defined widely enough to include a sidewalk, a deck, a retaining wall and a fire pit (s. 59.692(1)(e)).

Shoreland minimum standards — s. NR 115.05(1)

Standard	What it requires
Setback from the ordinary high-water mark	75 feet to the nearest part of any building or structure. Where an existing development pattern exists it may be reduced to the average of the adjacent lots, but never below 35 feet
Vegetative buffer zone	35 feet inland from the ordinary high-water mark, with vegetation removal prohibited except for maintenance, access and viewing corridors, and the other listed exceptions
Impervious surface	Generally 15% of the lot, applied to anything within 300 feet of the ordinary high-water mark. Up to 30% is possible with a county-approved mitigation plan recorded at the register of deeds
Minimum unsewered lot	100 feet average width and 20,000 square feet area. Sewered: 65 feet and 10,000 square feet

Chapter NR 115 as published, Register November 2024 No. 827. Counties may not regulate a matter more restrictively than a shoreland zoning standard (Wis. Stat. s. 59.692(1d)(a)), but may regulate matters NR 115 does not reach. One live conflict to be aware of: NR 115.05(1)(c)2.b caps an access and viewing corridor at the lesser of 30 percent of frontage or 200 feet, while Wis. Stat. s. 59.692(1f)(b)1. forbids an ordinance from setting that maximum below the greater of 10 feet or 35 percent, subject to the same 200-foot ceiling. The rule has not been conformed to the later statute — treat the **200-foot cap as certain** and get your county's current corridor figure in writing.

Do the impervious arithmetic before you make an offer

On a minimum unsewered lake lot — 20,000 square feet — a 15% impervious cap is **3,000 square feet total** for the house footprint, the garage, the driveway, the patio and the walks combined. That is a smaller house than most buyers picture once a driveway is in.

There is relief if your county has adopted it: NR 115.05(1)(e)3m. lets a county *exclude* impervious area whose runoff “is treated by devices such as stormwater ponds, constructed wetlands, infiltration basins, rain gardens, bioswales or other engineered systems”. Ask the county zoning office whether it allows treated-surface credit before you redesign the house.

Floodplain: what is forbidden, and what it costs

In the floodway, three things are simply prohibited: a structure “*designed for human habitation*”, “*any sewage system, whether public or private*” except portable latrines removed during flooding, and “*any well ... used to obtain water for ultimate human consumption*” (s. NR 116.12(1)(b), (e), (f)). No house, no septic, no well.

In the flood fringe you can build, on fill. The lowest floor excluding basement must be at or above the **flood protection elevation**, which is “*2 feet above the regional flood elevation*” (s. NR 116.03(20)). The fill must be “*not less than one foot above the regional flood elevation*”, extend “*at least 15 feet beyond the limits of any structure*”, and “*dryland access shall be provided*” (s. NR 116.13(2)(b)). Any basement floor must be at or above the regional flood elevation and floodproofed — and “*no variance may be granted to allow any floor below the regional flood elevation*”.

This is also the one place Wisconsin makes you buy a professional. A registered land surveyor, architect or engineer “*shall certify the actual elevation ... of the lowest structural member required to be elevated*” (s. SPS 321.33(3)) — and floodplain construction is the sole exception to the rule that a municipality may not require a sealed plan. **Get a flood zone determination and the regional flood elevation from the county zoning office in writing before you close on riparian land.**

THE DRIVEWAY, AND THE ONE-ACRE LINE

One statute covers every class of road and the rule is simply *whoever maintains it, permits it*: no person “*shall make any excavation or fill or install any culvert or make any other alteration in any highway ... without a permit therefor from the highway authority maintaining the highway*” (Wis. Stat. s. 86.07(2)(a)). A state highway means the Department of Transportation; a county trunk highway means the county highway department; a town road means the **town board** — which is the one owner-builders forget, and often the slowest, because town boards meet monthly.

For a residential entrance onto a state highway the specification is printed in the rule: a noncommercial rural driveway may be no “*less than 16 feet nor greater than 24 feet*” wide measured at right angles to the centerline, with a return radius no “*greater than 30 feet*”, placed at approximately right angles to the pavement except where topography requires otherwise (s. Trans 231.05). Note also that a state permit “*shall not supersede more restrictive requirements imposed by valid applicable local ordinances*” (s. Trans 231.01(4)) — it does not get you past county zoning. If your frontage is on a controlled-access highway, direct driveway access may not be available at all (Wis. Stat. s. 84.25).

One acre of disturbance is closer than it looks

Below one acre, erosion control rides on your building permit. At one acre or more it becomes a separate Department of Natural Resources permit: a notice of intent *"shall be submitted so that it is received by the department at least 14 working days prior to the commencement of any land disturbing construction activities"* (s. NR 216.44(1)), with the erosion control and stormwater plan completed *before* the notice goes in (s. NR 216.44(2)).

And the fee doubles if you file late: *"If an applicant applies for a permit after land disturbance has commenced, the application fees ... shall be doubled."* (s. NR 216.43(4)) A house pad, a driveway, a septic field and a materials staging area on a wooded lot cross an acre far more easily than people expect. If you are anywhere near the line, file.

WRITE DOWN WHAT YOU CONFIRMED

Every line below has a different answer depending on your parcel. Fill them in once and you will not have to find them again.

My offices, confirmed

	Item	Date	Notes
☐	Exact municipality of the parcel (town, village or city) Name _____ County _____		
☐	Is it on the UDC Delegated Municipalities List? Yes / No _____ Checked on _____		
☐	Who issues my building permit and does my inspections Name _____		
☐	County office that issues sanitary permits Office _____		
☐	County zoning office Office _____		
☐	Does the county run a delegated well program under NR 845? Yes / No _____ Confirmed by _____		

My offices, confirmed

	Item	Date	Notes
☐	Is there an existing soil test on this parcel? Yes / No _____ Date _____		
☐	Shoreland: is any part within 1,000 ft of a lake or 300 ft of a stream? Yes / No _____ Setback required _____		
☐	Floodplain: flood zone and regional flood elevation Zone _____ RFE _____		
☐	Road authority for my driveway Town / County / DOT _____ Permit no. _____		
☐	Total land disturbance — over one acre? Acres _____ NOI filed _____		
☐	Rural address / fire number assigned by Office _____ Address _____		

On the rural address: Wisconsin has no single statewide office for it. Ask when you file for zoning, and try Land Information, Real Property Lister, Planning and Zoning, or Emergency Management, in that order. The number is normally keyed to your approved *driveway* location rather than the house, so the driveway permit usually has to come first.

Sources — every Wisconsin claim in this document (verified September 2026)

What this document states	Authority
The two DSPS lookup documents and the 13 delegated counties	UDC Delegated Municipalities List, 19 Aug 2026; UDC Permit and Inspection Map, rev. 2 Apr 2026
Same agency issues the permit and does the inspections	s. SPS 320.08(2)
Sanitary permits come from the county	Wis. Stat. s. 145.01(5)
The county may put the POWTS program in any office	Wis. Stat. s. 145.20(1)(a)
The county holds and must accept prior soil test results	Wis. Stat. s. 145.19(1r)
An owner may drill their own well	s. NR 812.10(1)(a)

Sources — every Wisconsin claim in this document (verified September 2026)

What this document states	Authority
Well notification to the department before construction	Wis. Stat. s. 281.34(3)(a); s. NR 812.10(8)
Construction report within 30 days, to the department and to you	s. NR 812.10(11)
Minimum casing depths and diameters	ss. NR 812.13, 812.14, 812.29(1)
Coliform and nitrate sampling after new construction	s. NR 812.46(1)(b)
The well separation distances	s. NR 812.08, Table A; CR 25-013, eff. 1 Mar 2026
Distances measured to the source, not waived at a lot line	s. NR 812.08(4)
The POWTS horizontal setbacks	s. SPS 383.43, Table 383.43-1
24 inches of vertical separation	s. SPS 383.44(3)(a)
Counties shall zone all shorelands; 1,000 ft and 300 ft	Wis. Stat. s. 59.692(1c), (1)(b)
75-foot setback, 35-foot buffer, 15% impervious, lot sizes	s. NR 115.05(1)(a), (b), (c), (e)
Flood protection elevation is regional flood plus 2 feet	s. NR 116.03(20)
No house, septic or well in a floodway	s. NR 116.12(1)(b), (e), (f)
Driveway permit from the maintaining authority; the rural driveway spec	Wis. Stat. s. 86.07(2)(a); ss. Trans 231.01(4), 231.05
One acre; 14 working days; doubled late fee	ss. NR 216.42(1), 216.44(1), 216.43(4)

Everything cited in this kit is free to read at docs.legis.wisconsin.gov, and the site takes a citation directly as a URL. For a statute — a **Wis. Stat.** section such as 101.65 — open docs.legis.wisconsin.gov/statutes/statutes/101 and find the section in the chapter. For a rule — a **Wis. Admin. Code** chapter such as SPS 321 or NR 812 — open docs.legis.wisconsin.gov/code/admin_code and pick the agency: **SPS** is Safety and Professional Services, which writes the Uniform Dwelling Code and the septic code, and **NR** is Natural Resources, which writes the well code and shoreland zoning. **One habit worth keeping when you check a number:** every chapter page prints its register date at the foot, in the form “Register month year No. nnn”. That date, not the year in the chapter title, tells you how current the text on your screen is. All text here was read at that source, September 2026.